

HCS HB 1714 -- ANIMAL NEGLECT

SPONSOR: Sharpe (4)

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Special Committee on Rural Issues by a vote of 11 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 8 to 1.

The following is a summary of the House Committee Substitute for HB 1714.

This bill modifies the offense of animal neglect to include a person who has custody or ownership of an animal, other than livestock, and fails to provide adequate control.

If a person fails to provide adequate care or control that results in:

- (1) Property damage, it is a class B misdemeanor, unless the damage exceeds \$750, then it is a class E felony;
- (2) Physical injury to a person, it is a class A misdemeanor;
- (3) Serious physical injury to a person, it is a class E felony;
or
- (4) Death to a person , it is a class D felony.

The bill also repeals a provision allowing the court to waive all fines and penalties for the first finding of guilt if the person shows that the adequate, permanent remedies have been made.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that the bill would provide additional clarity about legal authority for law enforcement officers faced with situations involving animals and allow them to intervene sooner. Witnesses provided personal experiences with animal attacks and how the proposed changes would have allowed law enforcement to act quicker.

Testifying in person for the bill were Representative Sharpe; David Parrish, Lewis County Sheriff's Office; Virgil Nolan

Welker; Arnie C. Dienoff; Susan Ann Welker; and Missouri Alliance For Animal Legislation.

OPPONENTS: There was no opposition voiced to the committee.

OTHERS: Others testifying on the bill say there needs to be an exemption for sporting and hunting dogs, which are not always on a leash or in direct sight of the owner.

Testifying in person on the bill were Missouri Federation of Animal Owners; Professional Houndsman of Missouri; and Missouri Association of Sporting Dogs.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.